



CHAPTER 42.

An Act to increase the rates of benefit payable under the
Unemployment Insurance Acts, 1935 to 1940.

[26th October 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The weekly rates of benefit (other than agricultural benefit) payable under section thirty-six of the Unemployment Insurance Act, 1935 (in this Act referred to as "the principal Act"), shall be increased in accordance with the subsequent provisions of this section.

Ordinary
rates of
benefit,
other than
agricultural
benefit.
25 & 26 Geo. 5.
c. 8.

(2) In the case of men and women, and in the case of young men and young women who, by virtue of the proviso to the said section thirty-six, are entitled to benefit at the same rate as men and women respectively, the increase shall be four shillings:

Provided that in the case of a married woman (including any such young woman as aforesaid who is married) the increase shall be two shillings unless she satisfies either of the following conditions, that is to say:—

- (a) that she is wholly or mainly maintaining her husband who is prevented by physical or mental infirmity from supporting himself; or
- (b) that she is living apart from her husband and can obtain no financial assistance from him.

(3) In the case of other young men and young women and of boys and girls who have attained the age of seventeen years, the increase shall be three shillings.

(4) In the case of boys and girls who have not attained the age of seventeen years, the increase shall be one shilling.

(5) Accordingly the Unemployment Insurance Acts, 1935 to 1940, shall have effect as if the First Schedule to this Act were substituted for the Fourth Schedule to the principal Act.

Ordinary
rates of
agricultural
benefit.
26 Geo. 5. &
1 Edw. 8.
c. 13.

2.—(1) The weekly rates of agricultural benefit payable under the said section thirty-six by virtue of section three of the Unemployment Insurance (Agriculture) Act, 1936, shall be increased—

- (a) in the case of men and in the case of young men who, by virtue of the proviso to the said section thirty-six, are entitled to benefit at the same rate as men, by four shillings ;
- (b) in the case of other persons who have attained the age of seventeen years, by three shillings ; and
- (c) in the case of boys and girls who have not attained the age of seventeen years, by one shilling.

(2) Accordingly the Unemployment Insurance Acts, 1935 to 1940, shall have effect as if the Second Schedule to this Act were substituted for the Third Schedule to the Unemployment Insurance (Agriculture) Act, 1936.

Dependent
children.

3. The amount by which, under subsection (1) of section thirty-seven of the principal Act, the weekly rate of benefit in the case of an insured contributor who has a dependent child or dependent children is to be increased, shall be increased by one shilling in respect of each such child, and accordingly for the said subsection (1) there shall be substituted the following subsection :—

“(1) Where an insured contributor who is entitled to benefit has a dependent child or dependent children, the weekly rate of benefit shall be increased by five shillings in respect of each of the first two dependent children and by four shillings in respect of each other dependent child”.

Adult
dependants.

4.—(1) The amount by which, under subsection (1) of section thirty-eight of the principal Act, the weekly rate of benefit in the case of an insured contributor who has adult dependants is to be increased, shall be increased, in the case of a contributor who is not an agricultural contributor, by six shillings, and, in the case of an agricultural contributor, by five shillings.

(2) Accordingly in the said subsection (1) for the words “ten shillings”, in both places where they occur, there shall be substituted the words “sixteen shillings”, and in paragraph (a) of subsection (2) of section three of the Unemployment Insurance

(Agriculture) Act, 1936, for the words "ten shillings" and "nine shillings" there shall be substituted respectively the words "sixteen shillings" and "fourteen shillings".

5. The maximum weekly rate of agricultural benefit shall be increased by thirteen shillings; and accordingly in subsection (4) of section thirty-nine of the principal Act for the words "forty-one shillings" there shall be substituted the words "fifty-four shillings". Maximum agricultural benefit.

6. The Fifth Schedule to the principal Act (which sets out the provisions of that Act which may be amended by order under section fifty-nine of that Act) shall have effect as if there were included therein the preceding sections of this Act and the Schedules to this Act. Extension of Fifth Schedule to the principal Act.

7. There shall be defrayed out of moneys provided by Parliament any such increase in the sums so payable by virtue of section ninety-six of the principal Act as is attributable to the passing of this Act. Expenditure out of moneys provided by Parliament.

8.—(1) This Act may be cited as the Unemployment Insurance (Increase of Benefit) Act, 1944. Short title, citation, interpretation, repeal, commencement and extent.

(2) This Act shall be construed as one with the Unemployment Insurance Acts, 1935 to 1940, and this Act and those Acts may be cited together as the Unemployment Insurance Acts, 1935 to 1944.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by any subsequent enactment, order or regulation.

(4) Section one of, and the First Schedule to, the Unemployment Insurance Act, 1940, and, in section six of that Act, the word "one", are hereby repealed.

(5) This Act shall come into operation on such day as the Minister of Labour and National Service may by order appoint.

(6) This Act shall not extend to Northern Ireland except in so far as it affects provisions of the Unemployment Insurance Acts, 1935 to 1940, which extend to Northern Ireland.

SCHEDULES.

Section 1.

FIRST SCHEDULE.WEEKLY RATES OF BENEFIT, OTHER THAN
AGRICULTURAL BENEFIT.

Class of insured contributor.	Rate of benefit.	
	s.	d.
Men who have attained the age of 21 years	24	0
Women who have attained the age of 21 years and are not married, and married women who have attained that age and satisfy either of the conditions hereinafter mentioned	22	0
Married women who have attained the age of 21 years and do not satisfy either of the said conditions... ..	20	0
Young men between the ages of 18 and 21 years... ..	19	0
Young women between the ages of 18 and 21 years	17	0
Boys between the ages of 17 and 18 years	12	0
Girls between the ages of 17 and 18 years	10	6
Boys who have not attained the age of 17 years... ..	7	0
Girls who have not attained the age of 17 years	6	0

The conditions hereinbefore referred to are, in relation to a married woman, either—

- (a) that she is wholly or mainly maintaining her husband who is prevented by physical or mental infirmity from supporting himself; or
- (b) that she is living apart from her husband and can obtain no financial assistance from him.

Section 2.

SECOND SCHEDULE.

WEEKLY RATES OF AGRICULTURAL BENEFIT.

Class of agricultural contributor.	Rate of benefit.	
	s.	d.
Men who have attained the age of 21 years	22	0
Women who have attained the age of 21 years	18	0
Young men between the ages of 18 and 21 years	18	0
Young women between the ages of 18 and 21 years	15	0
Boys between the ages of 17 and 18 years	10	6
Girls between the ages of 17 and 18 years	9	0
Boys who have not attained the age of 17 years... ..	6	0
Girls who have not attained the age of 17 years	5	0

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